IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-515
CP (CAA) No. 59/230/232/PB/2021

IN THE MATTER OF:
Anya Promoters Pvt. Ltd. & Ors. With Atishay Jewellers Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232

Order delivered on 17.11.2022

CORAM:
JUSTICE TELAPROLU RAJANI,
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent : Ms. Hemlata Rawat Counsel for OL, For Income Tax Deptt. - Zoheb Hossain, Sr.Standing Counsel; Parth Semwal & Vipul Agrawal, Jr. Standing Counsel for Revenue, Adv. shankari Mishra for RD

ORDER

We have heard Counsels for Applicant, RD and Income Tax Dept. Counsel for RD submitted that he has no objection in the matter. Counsel for Income Tax Department submitted that the Company has certain tax dues which are to be paid by the Company. However, Counsel for Applicant submitted that these tax dues are in Appeal before the higher forums of Income Tax Dept and that they have also committed that whatever is the final order they will pay those taxes and file such an undertaking-cum-affidavit in this matter. Report of OL is on record. Order in this **matter is reserved.**

-sd-
(RAHUL BHATNAGAR)
MEMBER (T)

-sd-
(JUSTICE TELAPROLU RAJANI)
MEMBER (J)

Khushboo